

VILLAGE OF TUXEDO PARK
P.O. BOX 31
80 LORILLARD ROAD
TUXEDO PARK, NEW YORK 10987

Marc Citrin
Mayor

September 15, 2026

VIA EMAIL (mac4tux@gmail.com)
AND FIRST-CLASS MAIL

David and Robin McFadden
28 Pepperidge
Tuxedo Park, NY 10987

Re: YOUR FOIL REQUEST OF AUGUST 4, 2026

Dear Mr. and Mrs. McFadden:

We received your several requests for records pursuant to the Freedom of Information Law on August 4, 2026, seeking the following information:

REQUEST NO. 11 - *For January 1, 2025 through the date the search is completed: CAD or dispatch entries, calls-for-service records, complaint logs, incident or offense reports, officer notes, blotter entries, photographs, video references, referrals, warnings, summonses, citations, and written dispositions concerning the boathouse property at 61 Turtle Point Road, tax-map parcel 103-1-24, owned of record by NYELICK Holdings, LLC and associated with David and Robin McFadden, or the single fashion still-photography session conducted there from approximately 10:00 a.m. to 4:00 p.m..*

The records sought cannot be found after a reasonable search.

REQUEST NO. 2 - *For April 20, 2011 through the date the search is completed: CAD or dispatch entries, calls-for-service records, complaint logs, incident or offense reports, officer notes, blotter entries, referrals, warnings, summonses, citations, and written dispositions expressly concerning photography, photographic sessions, filming, video production, drone photography or videography, or paid location shoots conducted on private property within the Village.*

Attached are electronic copies of the records that you requested, portions of which have been redacted, pursuant to §§ 87(2)(b) and 89(2)(b) and (c)(i) of the Public Officers Law, to omit names or other identifying details in order to protect against unwarranted invasions of personal privacy. See Committee on Open Government Advisory Opinions FOIL-AO-f7603; FOIL-AO-f8124; FOIL-AO-F7648.

REQUEST NO. 3 - *For January 1, 2025 through the date the search is completed: emails, text messages, memoranda, social-media messages or screenshots, correspondence, notes, reports, and attachments exchanged among or involving Police Department personnel, the Mayor, Trustees, Clerk, Village attorneys, Building Inspector, residents, property owners, occupants, organizations, photographers, media or production companies, or other third parties concerning 61 Turtle Point Road, tax-map parcel 103-1-24, NYELICK*

Holdings, LLC, photography or filming on private property, boathouses, asserted noise, traffic, parking, safety, privacy or neighborhood-tranquility effects, or the proposed local law.

The records sought cannot be found after a reasonable search.

REQUEST NO. 4 - *For April 20, 2011 through the date the search is completed: written Police Department communications or records reflecting a decision to investigate, warn, cite, refer, close, decline further action, or otherwise dispose of a complaint after learning that photography or filming on private property had occurred. Attached are electronic copies of the records that you requested, portions of which have been redacted, pursuant to §§ 87(2)(b) and 89(2)(b) and (c)(i) of the Public Officers Law, to omit names or other identifying details in order to protect against unwarranted invasions of personal privacy. See Committee on Open Government Advisory Opinions FOIL-AO-f7603; FOIL-AO-f8124; FOIL-AO-F7648.*

REQUEST NO. 5 - *For January 1, 2025 through the date the search is completed: existing summaries, statistics, memoranda, reports, recommendations, or factual statements supplied by the Police Department to the Mayor, Board of Trustees, Village Clerk, Village attorney, Building Inspector, or any committee concerning the number, nature, location, outcome, or quality-of-life and public-safety effects of photography, filming, drone activity, or boathouse use on private property.*

The records sought cannot be found after a diligent search.

You have 30 days from receipt of a denial of access to records or portions thereof to appeal to:

Name: Board of Trustees of the Village of Tuxedo Park

Address: Village Hall
80 Lorillard Road
Tuxedo Park, NY 10987

Email Address: dsplathoff@tuxedopark-ny.gov

Sincerely,
Denise Spalthoff
Deputy Clerk/Treasurer

Encls. (as stated)

cc: Village Attorney (w/o encls.)